



U.S. Department
of Transportation

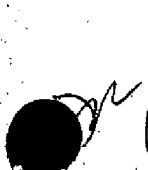
Research and
Special Programs
Administration

400 Seventh Street, S.W.
Washington, D.C. 20590

DOT-E 10848 (EXTENSION)
ORIGINAL October 5, 1993

In accordance with 49 CFR 107.105 of the Department of Transportation (DOT) Hazardous Materials Regulations DOT-E 10848 is hereby extended for the party(ies) listed below by changing the expiration date in paragraph 10 to December 31, 1996. This change is effective from the issue date of this extension. All other terms of the exemption remain unchanged.

This extension applies only to party(ies) listed below based on the application(s) received in accordance with 49 CFR 107.105. This extension constitutes a necessary part of this exemption and must be attached to it.


Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety

NOV 30 1994

(DATE)

Dist: FHWA FAA

EXEMPTION HOLDER

APPLICATION DATE

Plastic Reel Corporation of America
Lyndhurst, NJ

October 1, 1994

ADVISORY

IF YOU ARE A HOLDER OF AN EXEMPTION THAT AUTHORIZES THE USE OF A PACKAGING WITH A MAXIMUM CAPACITY LESS THAN 450 L (119 GALLONS) OR A MAXIMUM NET MASS LESS THAN 400 KG (882 POUNDS), PLEASE BE ADVISED THAT YOUR EXEMPTION MAY NOT BE RENEWED BEYOND SEPTEMBER 30, 1996. IN ADDITION, NO NEW CONSTRUCTION OF PACKAGINGS WHICH FALL WITHIN THE NON-BULK CAPACITIES LISTED ABOVE ARE AUTHORIZED AFTER SEPTEMBER 30, 1994. THIS IS CONSISTENT WITH THE IMPLEMENTATION OF THE NEW PACKAGING REQUIREMENTS ADOPTED UNDER DOCKET HM-181. ANY APPLICATION SUBMITTED TO THIS OFFICE TO RENEW AN EXEMPTION BEYOND THE SEPTEMBER 30, 1996 DATE WILL BE DENIED UNLESS THE APPLICATION CONTAINS SUPPORTING INFORMATION TO JUSTIFY THE CONTINUATION OF THE EXEMPTION.



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DOT-E 10848

1. Plastic Reel Corporation of America, Lyndhurst, New Jersey, is hereby granted an exemption from certain provisions of this Department's Hazardous Materials Regulations to manufacture, mark, and sell the packaging described in paragraph 7 below for nitrocellulose-base film, for transportation in commerce subject to the limitations and special requirements specified herein. This exemption authorizes the manufacture, marking, and sale of a combination packaging consisting of a polypropylene inner canister further packed in an outer packaging (as prescribed in Paragraph 7 below), and provides no relief from any regulation other than as specifically stated.

2. BASIS. This exemption is based on Plastic Reel Corporation of America's application dated July 1, 1992, submitted in accordance with 49 CFR 107.103, and the public proceeding thereon, and additional information dated October 15, 1992 and February 1, 1993.

3. HAZARDOUS MATERIALS (Descriptor and class). Nitrocellulose base film, classed as Division 4.1.

4. PROPER SHIPPING NAME (49 CFR 172.101). Nitrocellulose base film.

5. REGULATION AFFECTED. 49 CFR 173.183.

6. MODES OF TRANSPORTATION AUTHORIZED. Motor vehicle and passenger carrying aircraft.

7. SAFETY CONTROL MEASURES. Packaging prescribed is as specified in 49 CFR 173.183, except that the inner packaging is a polypropylene canister, as described in Plastic Reel's application. The cover of the canister must be securely held in place by adhesive tape.

8. SPECIAL PROVISIONS.

a. Offerors for transportation of the hazardous materials specified in this exemption may use the packaging described in this exemption for the transportation of such hazardous materials so long as no modifications or changes are made to the packages, all terms of this exemption are complied with, and a copy of the current exemption is maintained at each facility from which such offering occurs.

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b. In accordance with the provisions of 49 CFR Part 107, Appendix B to Subpart B, Paragraph 3, the shipper shall furnish a copy of this exemption to the air carrier before or at the time the shipment is tendered. In addition, a copy of this exemption must be carried aboard each aircraft used to transport packages covered by this exemption.

c. A copy of this exemption, in its current status, must be maintained at each manufacturing facility at which this packaging is manufactured and must be made available to a DOT representative upon request.

d. Each package shipped under this exemption must be marked "DOT-E 10848" in letters at least one-half inch high on a contrasting background.

e. Shippers using the packaging covered by this exemption must comply with the shipping paper, marking, labeling, and placarding requirements of 49 CFR Part 172; all provisions of this exemption, and all other applicable requirements contained in 49 CFR Parts 100 through 180.

9. REPORTING REQUIREMENTS. Any incident involving loss of packaging contents or packaging failure must be reported to the Associate Administrator for Hazardous Materials Safety as soon as practicable. (49 CFR 171.15 and 171.16 apply to any activity undertaken under the authority of this exemption.)

10. EXPIRATION DATE. February 28, 1995.

Issued at Washington, D.C.:


Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety

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(DATE)

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Research and Special Programs Administration, U.S. Department of Transportation, Washington, D.C. 20590.
Attention: Exemptions Program.

Dist: FHWA, FAA.